

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3431

By: Wilk, Woolley, Gise, Adams,
and Hill of the House

and

Gillespie and Deever of
the Senate

COMMITTEE SUBSTITUTE

An Act relating to ownership of land; amending 60
O.S. 2021, Section 121, as last amended by Section 1,
Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025, Section
121), which relates to foreign ownership of land;
modifying entities prohibited to own land;
prohibiting certain entities from leasing land or
critical minerals; updating statutory language; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 60 O.S. 2021, Section 121, as last
amended by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025,
Section 121), is amended to read as follows:

Section 121. A. As used in Sections 121 through 127 of this
title:

1. "Deed" means any instrument in writing whereby land is
assigned, transferred, or otherwise conveyed to, or vested in, the

1 person coming into title or, at his or her direction, any other
2 person;

3 2. "Foreign government adversary" means a government other than
4 the federal government of the United States, the government of any
5 state, political subdivision of the state, tribe, territory, or
6 possession of the United States and designated by the United States
7 Secretary of State as hostile or a Country of Particular Concern
8 (CPC);

9 3. "Foreign government enterprise" means a business entity,
10 sovereign wealth fund, or state-backed investment fund in which a
11 foreign government adversary holds a controlling interest;

12 4. "Foreign government entity" means a government other than
13 the federal government of the United States, the government of any
14 state, political subdivision of the state, tribe, territory, or
15 possession of the United States; and

16 5. "Land" means the same as defined in Section 6 of this title,
17 but shall not include oil, gas, other minerals, or any interest
18 therein.

19 B. No alien or any person who is not a citizen of the United
20 States, foreign terrorist organization (FTO) as designated by the
21 United States Secretary of State pursuant to 8 U.S.C., Section 1189,
22 Specially Designated National (SDN) as designated by the United
23 States Department of the Treasury's Office of Foreign Assets
24 Control, or foreign government adversary shall acquire title to ~~or,~~

1 own, or lease land or critical minerals, as determined by the United
2 States Geological Survey, in this state either directly or
3 indirectly through a business entity, trust, or foreign government
4 enterprise, except as hereinafter provided, but they shall have and
5 enjoy in this state such rights as to personal property as are, or
6 shall be, accorded a citizen of the United States under the laws of
7 the nation to which such alien belongs, or by the treaties of such
8 nation with the United States, except as the same may be affected by
9 the provisions of Section 121 et seq. of this title or the Oklahoma
10 Constitution ~~of this state~~. Provided, however, the requirements of
11 this subsection shall not apply to a business entity that is engaged
12 in regulated interstate commerce or has a national security
13 agreement with the Committee on Foreign Investment in the United
14 States (CFIUS) in accordance with federal law.

15 C. On or after November 1, 2023, any deed recorded with a
16 county clerk shall include as an exhibit to the deed an affidavit
17 executed by the person, the person's attorney-in-fact, a court-
18 appointed guardian or personal representative, an authorized officer
19 of the entity, or trustee of the trust coming into title attesting
20 that the person, business entity, or trust is obtaining the land in
21 compliance with the requirements of this section and that no funding
22 source is being used in the sale or transfer in violation of this
23 section or any other state or federal law. A county clerk shall not
24 accept and record any deed without an affidavit as required by this

1 section which is duly notarized pursuant to Title 49 of the Oklahoma
2 Statutes. The requirements of this subsection shall not apply to a:

3 1. Deed which, without additional consideration, confirms,
4 corrects, modifies, or supplements a deed previously recorded;

5 2. Deed made by a grantor to cure a defect in title or
6 effectuate a disclaimer of interest in real property;

7 3. Transfer-on-death deed made by a grantor designating a
8 grantee beneficiary pursuant to the Nontestamentary Transfer of
9 Property Act, Section 1251 et seq. of Title 58 of the Oklahoma
10 Statutes;

11 4. State or federal court order in an action to quiet title or
12 to cure a defect in title;

13 5. State or federal court order or decree in probate,
14 partition, quiet title, and divorce actions;

15 6. Deed which secures a debt or other obligation, or which
16 releases such property as security for a debt or other obligation;

17 7. Deed of dedication to the public; or

18 8. Deed in favor of the United States or any of its political
19 subdivisions, a state or any of its political subdivisions, or a
20 tribe.

21 The applicable exemption shall be shown on the face of the deed
22 prior to the recording of the deed and no affidavit shall be
23 required.

1 D. The Attorney General shall promulgate a separate affidavit
2 form for individuals and for business entities or trusts to comply
3 with the requirements of this section. The Attorney General may
4 establish additional exemptions which the Attorney General deems
5 necessary to substantially comply with the requirements of this
6 section. The county clerk may accept an affidavit in substantial
7 compliance with the affidavit form promulgated by the Attorney
8 General.

9 SECTION 2. This act shall become effective November 1, 2026.
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